

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 11, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINES 1 & 7	23CV414045	Yesenia Zavaleta vs Volkswagen Group of America, Inc. et al	Motion for Attorney's Fees and Enhancer (Line # 1) and Motion to Strike Costs (Line #7); Scroll down to Line 1 for Tentative Ruling on Lines 1 and 7.
LINE 2	24CV440065	LVNV Funding LLC vs Sairoop Dasaraju	Motion to Enter Judgment Pursuant to Default Scroll down to Line 2 for Tentative Ruling.
LINE 3	24CV451853	Douglas Gabriel vs Donna Cutuli	Motion to Deposit Bond Amount; Cancel; and Exonerate Bond; Discharge Liability; Attorney's Fees and Cost; and Dismissal Scroll down to Line 3 for Tentative Ruling.
LINES 4-5	25CV457823	Joey Mowry vs Daljeet Sagoo	Motion to Compel (Line # 4) and Motion: Admissions Deem Admitted (Line # 5) OFF CALENDAR. On August 3, 2026, Plaintiff/moving party withdrew the motions and filed a dismissal of the entire action with prejudice.
LINE 6	25CV468852	Arthur Hearn vs Ford Motor Company et al.	Petition to Compel Arbitration Scroll down to Line 6 for Tentative Ruling.
LINE --	25CV478112	Katherine Zulliger et al vs Ford Motor Company et al.	Demurrer VACATED. On June 9, 2026, the moving party WITHDREW the demurrer.

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9:01 A.M.			
LINE 1	26CV493370	Emmanuel Haro vs Albertson's LLC	Motion to Withdraw as Attorney Parties to appear.

9:00 A.M.

Calendar Lines # 1 & 7

Case Name Yesenia Zavaleta vs Volkswagen Group of America, Inc. et al

Case No. 23CV414045

Motion for Attorney's Fees and Enhancer (Line # 1) and Motion to Strike Costs (Line #7)

Before the Court is the Plaintiff's Motion for Attorney's Fees and Cost (Line # 1) and Defendant Volkswagen's Motion to Strike Cost (Line # 7). Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

LINE # 1: MOTION FOR ATTORNEY'S FEES AND COST

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This case stems from a Complaint under the Song-Beverly Act that was filed on December 12, 2022 regarding Plaintiff Yesenia Zavaleta's ("Zavaleta") 2018 Audi A5 vehicle, vehicle identification number WAUTNAF56JA000598 (Compliant and Declaration of Kevin Jacobson, ¶ 38). The case was transferred from the Superior Court of the State of California, County of San Francisco. The parties filed a notice of settlement on July 9, 2025, as on July 3, 2025, Plaintiff Zavaleta accepted the defense offer to compromise under Code of Civil Procedure section 998. (Exhibit A of Declaration of Sivasangary).

B. RELEVANT PROCEDURAL BACKGROUND

Before the court is Plaintiff Zavaleta's motion for attorney's fees, costs and enhancer that was filed on November 2, 2026. The motion was accompanied by a proof of service indicating electronic mail service to defense counsel on November 24, 2025.

Defendant Volkswagen Group of America, Inc. ("Volkswagen") filed an opposition paper on July 22, 2026.

The Court has carefully reviewed the following: Plaintiff's notice of motion and memorandum of points and authorities (totaling 23 pages), Declaration of Kevin Jacobson and attached Exhibits 1-16 (totaling 107 pages); Defendant's opposition (total 13 pages); Declaration of Oviya Sivasangaray and attached Exhibits A-G in support of defense's opposition (totaling 101 pages); Reply brief (totaling 12 pages); supplemental Declaration of Kevin Jacobson and attached Exhibits 1-6 (totaling 54 pages); memorandum of costs filed on November 7, 2025 (totaling 29 pages); proofs of services; and the pleadings.

II. LEGAL STANDARD

A. ATTORNEY'S FEES AND COST

Pursuant to Code of Civil Procedure section 1033.5(a)(1), a prevailing party is entitled to recover its attorney's fees when authorized by contract, statute, or law. (*See also*, Civ. Code § 1717(a)). "A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (*Bowman v. City of Berkeley* (2005) 131 Cal.App.4th 173, 178).

The Song-Beverly Act provides, "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794(d)).